

52 & 53 Vict.
c. 50.

council out of the burgh general or police assessment and in the case of a county council out of the general purposes rate, provided that with respect to every burgh, which is for the purposes of this Act deemed to be within the county, subsections (3) and (4) of section sixty and section sixty-six of the Local Government (Scotland) Act, 1889, shall, so far as applicable, have effect as if such expenses were expenditure therein mentioned:

(3) The expression "court of summary jurisdiction" shall mean the sheriff, and the provisions regarding appeal to a court of quarter sessions shall not apply:

(4) The expression "a licence] for music and dancing" shall mean a licence granted under section three hundred and ninety-five of the Burgh Police (Scotland) Act, 1892.

55 & 56 Vict.
c. 55.

Short title.

15.—(1) This Act may be cited as the Theatrical Employers Registration Act, 1925.

(2) This Act shall not apply to Northern Ireland.

CHAPTER 51.

An Act to amend the Law relating to Separation and Maintenance Orders. [31st July 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amend-
ments of
principal
Act as to
grounds on
which
orders may
be made.
58 & 59 Vict.
c. 39.

1.—(1) An application by a married woman for an order or orders under the Summary Jurisdiction (Married Women) Act, 1895, as amended by any subsequent enactment (which Act as so amended is hereinafter referred to as the principal Act) on the ground of cruelty or neglect by her husband, may be made notwithstanding that the cruelty or neglect complained of has not caused her to leave and live separately and apart from him, and accordingly the words "and shall

“ by such cruelty or neglect have caused her to leave
“ and live separately and apart from him ” in section
four of that Act are hereby repealed.

(2) Amongst the grounds on which a married woman may apply for an order or orders under the principal Act there shall be included the following grounds—

- (a) that her husband has been guilty of persistent cruelty to her children;
- (b) that her husband while suffering from a venereal disease, and knowing that he was so suffering, insisted on having sexual intercourse with her;
- (c) that her husband has compelled her to submit herself to prostitution.

Where the husband has, in the opinion of the court, been guilty of such conduct as was likely to result and has resulted in her submitting herself to prostitution, he shall, for the purposes of this subsection, be deemed to have compelled her so to submit herself.

(3) Amongst the grounds on which a married man may apply for an order or orders under the principal Act there shall be included the ground that his wife has been guilty of persistent cruelty to his children.

(4) No order made under the principal Act shall be enforceable and no liability shall accrue under any such order whilst the married woman with respect to whom the order was made resides with her husband, and any such order shall cease to have effect if for a period of three months after it is made the married woman continues to reside with her husband.

2.—(1) Section seven of the principal Act (which provides, amongst other things, that if a married woman, upon whose application an order has been made under that Act, shall commit an act of adultery, such order shall upon proof thereof be discharged) shall have effect as though at the end thereof the following proviso were inserted:—

Amendment
of s. 7 of
principal
Act.

“ Provided that the court may, if the court think fit—

“ (a) refuse to discharge the order if, in the opinion of the court, such act of adultery as

aforesaid was conduced to by the failure of the husband to make such payments as in the opinion of the court he was able to make under the order; and

•

“(b) in the event of the order being discharged, make a new order that the legal custody of the children of the marriage shall continue to be committed to the wife, and that the husband shall pay to the wife or to any officer of the court or third person on her behalf, a weekly sum not exceeding ten shillings for the maintenance of each such child until the child attains the age of sixteen years. In making such an order the court shall have regard primarily to the interests of the children.”

(2) Where a married woman with respect to whom an order has been made under the principal Act resumes cohabitation with her husband after living apart from him, or where she has before the date of the commencement of this Act so resumed cohabitation, and is at that date cohabiting with him, the order shall cease to have effect on the resumption of such cohabitation or at the commencement of this Act, as the case may be.

Amendment
of definition
of “habit-
ual drunk-
ard.”
2 Edw. 7.
c. 28.
42 & 43 Vict.
c. 19.

3. The expression “habitual drunkard” in section five of the Licensing Act, 1902, shall be interpreted as though in the definition of that term in section three of the Habitual Drunkards Act, 1879, the reference to the habitual intemperate drinking of intoxicating liquor included a reference to the habitual taking or using, except upon medical advice, of opium or other dangerous drugs within the meaning of the Dangerous Drugs Acts, 1920 and 1923.

Notice of
change of
address.

4. Any person for the time being under an obligation to make payments (including costs) under an order made under the principal Act, as amended by this Act, shall give notice to such persons (if any) as may be specified in the order of any change of address, and any person failing to give such notice without reasonable excuse shall be liable on summary conviction to a fine not exceeding two pounds.

5. Where an order under the principal Act contains a provision committing to the applicant the legal custody of any children of the marriage, a copy of the order may be served upon any person in whose actual custody the children may for the time being be, and thereupon the provision may, without prejudice to any other remedy open to the applicant, be enforced under subsection (2) of section thirty-four of the Summary Jurisdiction Act, 1879, as if it were an order of the court requiring that person to give up the children to the applicant.

Enforce-
ment of
orders as
to custody
of children.

42 & 43 Vict.
c. 49.

6.—(1) Where, on the hearing of an application for an order of maintenance, the application is adjourned for any period exceeding one week, the court may order that the husband do pay to the wife or to an officer of the court or third person on her behalf a weekly sum (not exceeding such an amount as might be ordered to be paid under a final order) for the maintenance of the wife and any child or children in her custody until the final determination of the case: Provided that the order directing such payment shall not remain in operation for more than three months from the date on which it was made.

Power to
order
interim pay-
ments where
application
for main-
tenance of
married
woman is
adjourned.

(2) Any such order shall be enforced in like manner as if it were a final order of the court.

7.—(1) This Act may be cited as the Summary Jurisdiction (Separation and Maintenance) Act, 1925, and section five of the Licensing Act, 1902, the Married Women (Maintenance) Acts, 1895 and 1920, and this Act may be cited together as the Summary Jurisdiction (Separation and Maintenance) Acts, 1895 to 1925.

Short title,
extent, and
commence-
ment.

(2) This Act shall not extend to Scotland or Northern Ireland.

(3) This Act shall come into operation on the expiration of two months after the passing thereof.

